**TOWN OF THUNDERBOLT**
**REGULAR MONTHLY MEETING**
**WEDNESDAY, SEPTEMBER 4, 2024**
**6:00 PM**

## AGENDA HEARING

**Public has five minutes per person to ask questions or comment on any agenda item.**

## REGULAR MEETING

1. **Call to order**

2. **Roll Call by Presiding Officer with Invocation, followed by the Pledge of Allegiance**

3. **Approval of Meeting Agenda**

4. **Approval of Minutes from Previous Meeting**:

   Minutes of August 14, 2024

5. **Presentations:**

   Proclamation: Patriot Day
   Proclamation: Georgia Reads Day
   Recognition of 4 Thunderbolt businesses
   Police Department Promotion: Corporal CJ Wilson to Sergeant
   Fire Department Promotion: Firefighter Josh Mohler to Captain

6. **Thunderbolt Museum**

7. **Finance Report:**

   a) Report – Due to the early date of the meeting, there will not be a finance report this month

8. **Discussion Agenda:**

   a) Consideration of Water Tap Application
      Applicant: JM & DOC Holdings, LLC
      Address: Downing Ave
      PIN: 30002 01014

   b) Approval of Ceres Debris contract renewal

9. **Department Report –** Written Reports Submitted

**by:** **Police / Municipal Court / Neighborhood Watch – Sean Clayton, Chief of Police**
**Fire – Andrew Bateman, Fire Chief**
**Public Works Department – Oscar Crosby, Public Works Manager**
Due to the early date of the meeting, there will not be a Public Works report this month

10. **Town Clerk/Town Administrator Report –** Matthew Walker

11. **Legal Report**

    Reading of Map Amendment Ordinance – 4549 Whatley Ave

12. **Mayor and Council**

13. **Executive Session**

14. **Adjournment:**

**TOWN OF THUNDERBOLT**
**REGULAR MONTHLY MEETING**
**WEDNESDAY, AUGUST 14, 2024**
**6:00 PM**

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## AGENDA HEARING

**Public has five minutes per person to ask questions or comment on any agenda item.**
**Mayor Williams opened the public hearing up at 6 pm.**

Nicholas Patrick, 2821 Grant Street, presented from a handout discussing his desire to rezone the current I-P parcels to R-1 to preserve the neighborhood feeling in the area.

Geneva Golden, 3126 Gilbert Street, discussed the leaning trees near her house and other houses nearby. She stated during the storm a tree fell into a line that is still hanging low. She also stated she would like to have a discussion about overgrowth in easements and alleys.

Sue DeRosa, 3216 Bannon Drive, stated the last tree inventory was done in 2012. She stated the Town needed to apply for a grant to get a new direct inventory done of the trees in Thunderbolt.

Ms. Golden stated the house across from the SSU gate has 2 pit-bulls not on leashes. She stated the house needs to be condemned. She also stated the house next to it needs to be condemned too.

Chief Clayton stated that Code Enforcement is aware and has been in contact with the out-of-state owner.

Ms. Yvonne, 3116 Falligant Avenue, stated the house in question has been like that for over 1 year. Dogs are always on the loose. Nothing new- it's an ongoing problem.
Mayor Williams closed the public comment at 6:29 pm.

## REGULAR MEETING

1. **Call to order -** Mayor Williams called the meeting to order at 6:38 pm.

2. **Roll Call by Presiding Officer with Invocation, followed by the Pledge of Allegiance**

   In Attendance is Mayor Dana Williams and Council Members: Lawrence Ward, Bethany Skipper-Greer, David Crenshaw, Edward Drohan, James Lavin, and Brooks Barbaree. Staff in attendance: Police Chief, Sean Clayton, Police Lieutenant, Brandon Runyon; Fire Captain, Josh Mohler; Director of Public Works, Oscar Crosby; Town Attorney, Charlie Barrow; Accounts Payable Manager, Katina Spaulding; Utility Clerk, Renee Holmes; Town Clerk/Zoning Administrator/Town Administrator, Matthew Walker.

3. **Approval of Amended Meeting Agenda (moving item 8a to 6b, moving item 7c to 7a, tabling item 7e)**

Mayor Williams asked for a motion to approve the amended agenda. **Council Member Drohan made the motion to approve the amended agenda with a second by Council Member Ward. The motion passed unanimously.**

4. **Approval of Minutes from Previous Meeting**:

   Minutes of July 10, 2024

   Mayor Williams asked for a motion to approve the meeting minutes of July 10, 2024. **Council Member Ward made the motion to approve the meeting minutes of July 10, 2024 with a second from Council Member Crenshaw. The motions passed unanimously.**

5. **Presentation:**

   a) Mayor Williams read the "Know Local-Go Local" business spotlight for September 2024. The businesses recognized in September are: Luminary Salon, Savannah Wildlife Rescue Center, Ali-Gaitor Marine Works, and Precision Firearms.

6. **Finance Report:**

   Ms. Shannon Brett of HBBB reviewed the finance report for July 2024. She stated the audit is done and we are waiting on our Certificate of Excellence.

   Ms. Brett also discussed the interest rates and balances of Thunderbolt investments. She stated the United Community Bank interest rate dropped from 4.75% to 4.38%. The money market and SPLOST accounts are still at 4.75%.

7. **Consent Agenda:**

   **Mayor Williams closed the regular session to open a public hearing at 7:12pm**

   Zoning Administrator Walker explained the history of the request. Bob Portman, representative for Bryan Ray, stated they listened to the community and amended their request.

   a) Consideration to rezone property from (I-P) to (R-1)
      Applicant: Bryan Ray
      Address: 4549 Whatley Ave
      PIN(s): 30292 02013 & 30292 02011

   **Mayor Williams closed the public hearing and opened the regular session at 7:17pm**

   **A motion was made by Council Member Drohan to approve items 7a and 7d with a second from Council Member Barbaree. The motion passed unanimously.**

   b) Approval of Downing Street Lift Station Surge Protector purchase

   c) Approval of Downing Street Lift Station Panel replacement purchase

   d) Consideration to combine lots (combining 2 lots into 1 lot)
      Applicant: Bryan Ray
      Address: 4549 Whatley Ave
      PIN(s): 30292 02013 & 30292 02011

   e) Approval of Standard Repair Agreement for elevator

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**A motion was made by Council Member Drohan to approve the remaining items on the consent agenda. Council Member Barbaree provided the second. The motion passed unanimously.**

8. **Discussion Agenda:**

   a) Town of Thunderbolt investments

   **This item was moved to item 6b. Council Member Crenshaw made a motion to form an ad-hoc committee with the ability to move forward with investments with the condition that all changes are to be reported immediately to all council members and announced at the next council meeting. Council Member Ward provided the second. The motion passed unanimously.**

9. **Department Report –** Written Reports Submitted

   **by: Police / Municipal Court / Neighborhood Watch – Sean Clayton, Chief of Police**
   Chief Clayton added that Blueline Solutions crew will be coming next week to fix the issues with the school cameras. He had nothing further to add.

   **Fire –Fire Captain, Josh Mohler**
   Captain Mohler had nothing to add to his report.

   **Public Works Department – Director of Public Works, Oscar Crosby**
   Director Crosby was not present to review his report due to work needs

10. **Town Clerk/Town Administrator Report –** Matthew Walker

    Town Clerk/Administrator Walker announced the hiring of Elizabeth Rhoades as Executive Assistant to the Town Administrator. He also stated the Town will be moving some accounts payable to ACH payments for efficiency. He had nothing further to add.

11. **Legal Report –** Town Attorney, Charlie Barrow

    Nothing to report or discuss

12. **Mayor and Council –**

    Hyundai Metaplant Water impact – Dr. Drohan explained the water issue with the Hyundai plant and how it will impact this area more than originally expected. The Town of Thunderbolt needs to look to the future and plan ahead so we are prepared.

13. **Thunderbolt Museum**

    Anna Maria Thomas discussed the yard sale on 9/14/24. The museum is getting some renovations, including a wall to preserve history. They will announce a re-grand opening once more information is available.

14. **Executive Session-**

    **Council Member Ward made a motion at 7:50 pm to leave regular session to enter executive session to discuss Personnel, Property, or Litigation. Council Member Barbaree seconded. The motion passed unanimously.**

    **Council Member Crenshaw made a motion at 8:08 pm to leave executive session to return to regular session. Council Member Drohan seconded. The motion passed unanimously.**

    Mayor Williams discussed the old Fire Truck "Ginny" that is at the shop for restoration.

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Mayor Williams asked for a motion to adjourn the meeting. **Council Member Ward made the motion with a second from Council Member Crenshaw. The motion passed unanimously.**

15. **Adjournment:**

The meeting adjourned at 8:10 pm.

_____ _____

Dana Williams, Mayor Matthew D. Walker, Town Clerk

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**BY THE MAYOR OF THE TOWN OF THUNDERBOLT**

**A PROCLAMATION**

**"PATRIOT DAY"**

**WHEREAS,** on the 11th of September 2001, the peace and security of our nation was shattered by terrorist attacks that killed thousands of innocent and brave people at the World Trade Center Towers in New York City, the United States Pentagon, and in the fields of Shanksville, Pennsylvania; and,

**WHEREAS,** these attacks not only targeted American citizens, but the very values that bind our communities around the principles of freedom, justice, and prosperity; and

**WHEREAS**, by a joint resolution in December of 2001, the United States Congress designated September 11th as Patriot Day. Furthermore, on April 21st, 2009, President Barack Obama signed into law the Edward M. Kennedy Serve America Act, which includes language to officially establish September 11th as a recognized National Day of Service and Remembrance; and,

**WHEREAS**, we salute the sacrifices made by heroic passengers, firefighters, police officers, EMTs, construction workers, colleagues, and strangers remind us of the courageous and tenacious character of our citizens and our Nation; and,

**WHEREAS**, in remembrance and honor of the innocent victims and first responders who lost their lives, and of all the families left behind, let our Nation, our Community, our Town continue to emerge stronger and more resilient by serving to lift the lives of our fellow citizens, and

**THEREFORE I**, Dana Williams, Mayor of the Town of Thunderbolt do humbly proclaim September 11th, 2024, as PATRIOT DAY in the Town of Thunderbolt and I thank my and our fellow citizens that continue to contribute their time and energy in assisting others through community service and throughout the year to honoring those who died on September 11th, 2001.

**IN WITNESS WHEREOF**, I have hereunto set my hand and caused the Seal of Thunderbolt to be affixed this **4th day of September 2024**.

_____

Mayor Dana Williams Town of Thunderbolt

**BY THE MAYOR OF THE TOWN OF THUNDERBOLT**

**A PROCLAMATION**

**"GEORGIA READS DAY"**

**WHEREAS,** Literacy is not just an education issue but an economic, workforce, and quality of life issue. It is also a predictor of future educational achievement, economic status, and lifelong health and well-being; and,

**WHEREAS,** in 2023, 61% of Georgia rising fourth graders did not read proficiently, and research shows that children who are proficient readers by the end of third grade are four times more likely to graduate from high school than their peers who are not reading on grade level; and,

**WHEREAS**, The General Assembly recognized the importance of literacy skills with the passage of two bills in 2023: SB 211, that created the Georgia Council on Literacy, and HB 538, that requires comprehensive education reforms for reading instruction in the science of reading; and,

**WHEREAS**, understanding that collaborative efforts and strategic partnerships must be undertaken to effectively address literacy issues, the Georgia Municipal Association (GMA) and its nonprofit organization, Georgia City Solutions, members of the Georgia General Assembly, and football champion now turned children's author, Malcolm Mitchell, partnered with the Georgia Council on Literacy to launch "Georgia Reads" at the 2024 GMA Annual Convention; and,

**WHEREAS**, Community involvement is essential to literacy improvements and "Georgia Reads" will include recognizing 10 community partnerships that have increased literacy in the past three to five years as Georgia Reads Communities; and,

**WHEREAS,** September 30, 2024, marks a date when all Georgians are encouraged to create awareness about the importance of reading and encourage community partnerships to promote future literacy improvements; and,

**WHEREAS,** together we can improve Georgia's economic vitality one book at a time.

**THEREFORE** I, Dana Williams, Mayor of the Town of Thunderbolt, do hereby proclaim September 30, 2024 as **THUNDERBOLT READS DAY** and encourage all residents, businesses, and community partners to help promote and elevate literacy as a community priority.

**IN WITNESS WHEREOF**, I have hereunto set my hand and caused the Seal of Thunderbolt to be affixed this **4th day of September 2024**.

_____

Mayor Dana Williams Town of Thunderbolt

**Mayor's "Know Local- Go Local" Initiative**

**Thunderbolt Businesses**

**Spotlight Recognition**

**For October 2024**

**WHEREAS, The Mayor's "Know Local-Go Local" Business Spotlight Program** was created in order to recognize and showcase local area businesses that are vital to the Town's identify, one of small-Town charm, and local business that serve and support families in our community.

This recognition program is exclusive to none, for we all stand to benefit as a community via prosperity of our Town's businesses. Through this program, members of the community are exposed to a variety of businesses that have displayed their desire to be excellent stewards of not only their business, but of the community as a whole, ensured to support diversity in their workplace, and a desire to continue to do the excellent work, service, or craft they perform.

It is with the forementioned values at the ready, I Mayor Dana Williams proudly recognize and encourage all our citizens and visitors to visit these establishments, learn about them, view their websites, social media, and ultimately support these and all local businesses.

Hereby the following is recognized as the Thunderbolt Business Spotlight of the week...

The week of October 7th, 2024- "Know Local- Go Local" Spotlight is...

**Tortuga's Island Grill** – Southern comfort fare with Caribbean influences

The week of October 14th, 2024- "Know Local- Go Local" Spotlight is...

**River Drive Crossfit –** Gym focused on constantly varied high-intensity functional movements

The week of October 21st, 2024- "Know Local-Go Local" Spotlight is...

**Thunderbolt Marine Inc.** – Full service yacht repair and refit facility

The week of October 28th, 2024 - "Know Local - Go Local" Spotlight is...

**Victory Grips –** Designer of gymnastic grips / hand protection for functional fitness

I and We look forward to spotlighting all the businesses within the Town of Thunderbolt, as we continue to grow and develop as a Town and Community to support one another.

# PLANNING AND ZONING
# LAND USE REVIEW
# Town of Thunderbolt

**APPLICATION TYPE**: Plan Approval of [P-B] Business Zone

**PLANNING AND ZONING COMMISSION DATE:** 6-26-2024

**COUNCIL DATE:** 7-10-2023 – Tabled; ~~8-14-2024~~; 9-4-2024

| | |
|---|---|
| **Request:** | Request to install water-tap and provide water service in the area generally bounded by Bonaventure Road, Downing Ave, and the northern town boundary of Thunderbolt, GA |
| **Owners/Applicants:** | JM & DOC Holdings |
| **Location:** | Downing Ave |
| **Parcel ID#:** | 30002 01014 |
| **Zoning Designation:** | Planned Business District [P-B] |

**FINDINGS:**

1. This request aims to allow a water-tap in a Planned Business Zone.
2. Staff has reviewed this application for compliance with the Thunderbolt Code of Ordinances [the Code] and finds that planned development districts may require special considerations for site plan development due to proximity of residential uses, intensity of proposed development, or the presence of actual or potential traffic occurrences. The prefix "P" may be applied to any zoning district classification for any property that meets the aforementioned criteria.
3. Article IX of Appendix A – Zoning; Planned Development District, 6. Specific Plan provides that no development shall take place until detailed development plans where required, be submitted for review and approval by the PZ Commission and Council. In smaller projects, a general development plan may be required, but the PZ Commission should be consulted as to the requirement of a general development plan.
4. Article IX of Appendix A – Zoning; Planned Development District, 7. Standards provides that development shall be applied as provided elsewhere in the chapter for the particular district.

**PLANNING AND ZONING DEPARTMENT RECOMMENDATION:**

Town Staff recommend **APPROVAL** of this site request provided that all necessary requirements are met with Public Works to provide physical installment of water and comply with rules and regulations to the service provided.

**PLANNING AND ZONING COMMISSION RECOMMENDATION:**

The Planning Commission approved the request conditionally with the technical type of water well/installation to be minimal as possible.

**EXHIBITS:**
*Application Request*
*Vicinity Map*




P-B – Planned Business District
B – Business
R-1 Single Family Residential
R-2 Two Family Residential
R-3 Residential Multi-Family

**Sec. 4-207. - Mandatory connection to water system required.**
All owners of real property or consumers of water within the town shall connect or cause to be connected all plumbing and water fixtures on the real estate owned by them, or on the premises occupied or using water, with the town water system.

**Sec. 15-710. - Drainage.**
Changes in the topography, drainage, disposal of stormwater or other development design that appreciably increases, decrease or change the quality or quantity of surface or sub-surface water reaching adjacent or surrounding property is prohibited.

**Sec. 15-710.01. - Stormwater management standards.**
Each development shall incorporate stormwater management facilities sufficient to maintain pre-development peak discharge rates across adjacent property lines.
No development shall be undertaken that can be shown to increase the flood potential within the development, on adjacent or surrounding lands or on tidal or freshwater wetlands. If such potential is in question, the town's engineer shall make the final determination.

TOWN OF THUNDERBOLT
WATER/SEWER TAP IN APPLICATION

**Street Address:** PIN- 30002 01014 Downing Ave Lot C

**Owner's Name:** JM & Doc Holdings **Phone#:** 912-313-3955

**Owner's Address (If different):** _____

_____

**Work to Be Performed By:**
**Company Name:** WC Hall Co

**Company Address:** 26 ~~Mcintosh~~ McIntosh Dr Sav Ga 31406

**Responsible Individual:** Jason Hendrix

**Phone #:** 912-313-3955

**Residential** ☐ **Commercial** ☒

The meter fee and the water and sewer connection fee must accompany this application

| | Residential | Commercial |
|---|---|---|
| Water Tap In | $1,200.00 | $1,500.00 |
| Sewer Tap In | $1,200.00 | $1,500.00 |
| Administration Fee | $ 150.00 | $ 150.00 |
| Water Meter | Market Cost | Market Cost |

Once the water meter has been installed it is the responsibility of the owner/resident to set up the water account. Please contact the Town's Utility Services @912-354-5533

Signature: _____ Date: 11/14/2023

************************************FOR OFFICE USE ONLY************************************

**FEE:** _____ **AMOUNT RECEIVED FROM APPLICANT:** _____ **DATE:** _____

# Annual Disaster Debris Removal, Reduction and Disposal Services Contract

**By and Between**

**Thunderbolt, Georgia (Town)**

**and**

**Ceres Environmental Services, Inc.**

This Contract is made and entered into on the dates hereinafter indicated, by and between the Town of Thunderbolt, Georgia, a political subdivision of the State of Georgia, hereinafter referred to as "Client", and Ceres Environmental Services, Inc., hereinafter referred to as "Ceres", a Florida corporation authorized to do and doing business in the State, represented herein by its Corporate Secretary, Tia Laurie, duly authorized.

WITNESSETH:

WHEREAS, Client requires a standby contract for Disaster Debris Removal, Reduction, and Disposal Services in the event of a natural or man-made disaster; and

WHEREAS, Client prepared and issued an RFP Invitation to Service Providers Annual Disaster Debris Removal, Reduction and Disposal Services, requesting proposals from qualified firms, hereinafter referred to as "the Request", a copy of which is attached hereto and incorporated herein by reference as Exhibit "A"; and

WHEREAS, Ceres submitted a formal proposal in response to the Request dated June 27, 2022, hereinafter referred to as "the Proposal", a copy of which is attached hereto and incorporated herein by reference as Exhibit "B"; and

WHEREAS, Ceres submitted the Proposal, contained relevant pricing information, hereinafter referred to as "Fee Schedule", a copy of which is attached hereto and incorporated herein by reference as Exhibit "C"; and

WHEREAS, Client and selected Ceres are now desirous of entering into a final and binding contract for the Request in accordance with the Exhibit documents annexed hereto and the terms and conditions outlined herein.

NOW THEREFORE, in consideration of the mutual covenants and agreements herein, Client and Ceres hereby agree as follows, to-wit:

**SECTION 1 – GENERAL**

This Contract will commence upon signature of the Client.

Ceres will provide The Request to Client in accordance with the terms and conditions stated herein, and those contained in the Request, Proposal, and Fee Schedule (Exhibits "A" "B" and "C").

For purposes of this Contract, the order of precedence for interpretation will be as follows:

1. This Contract to provide The Request
2. The Request for Proposal and any and all Addendums ("Exhibit A")
3. The Proposal ("Exhibit B")
4. Fee Schedule ("Exhibit C")

**SECTION 2 – SCOPE OF SERVICES**

Client hereby engages Ceres to provide The Request in accordance with the terms and conditions stated in Exhibit "A". The Scope of Services specifically includes those items listed in "Scope of Services, included in Exhibit A. This Contract is a pre-placement contract that can be activated by Client in the event of an emergency or disaster-related event such as, but not limited to, hurricanes, tornados, and floods. The use of Ceres' services under this Contract will therefore be on an as-needed basis as requested by Client. The Scope of Services may include removal of debris from public property; removal of debris from public streets and rights-of-way; processing and disposal of debris; preparing and maintaining documentation of all services performed including, but not limited to, time sheets, load tickets, materials used, invoices for rented equipment, etc.

**SECTION 3 - MAXIMUM CONTRACT AMOUNT**

The Contract is based on Unit Pricing as set forth in the Fee Schedule, Exhibit C.

**SECTION 4 – CONTRACT PERIOD**

This contract will commence on the signature of Client and will expire on July 13, 2024 with the option to renew for an additional two (2) additional one (1) year terms, upon agreement by both parties under the same terms and conditions. Services under this Contract will only be performed in the event of a disaster and no funding will be available for this Contract until the time of the disaster.

**SECTION 5 – PRICE ADJUSTMENT ALLOWANCE**

The CLIENT will allow one (1) price adjustment for each year, per one year renewal periods, but prices shall not exceed the Consumer Price Index (Urban Consumers) South Region percent of change for the twelve (12) months immediately preceding the date of written request for price adjustment.

Equitable Adjustments: AGREEMENT RENEWAL a. Price adjustment, during the optional renewal period, will be allowed, b. price adjustment per year of renewal and must be in accordance with the above CPI stipulation.

**SECTION 6 – OWNERSHIP OF DEBRIS**

All debris, including regulated hazardous waste, and white goods, shall become the property of Ceres for removal and lawful disposal. Ceres is permitted to retain any revenues generated from recycled goods such as white goods, metals etc. This list does not contain all recycled goods that Ceres may retain profits from.

**SECTION 7 - AUDIT OF RECORDS**

The monitoring and auditing of Ceres' records shall be allowed to Client's Finance Department, and any other appropriate CLIENT entities, or other third parties as designated by CLIENT.

**SECTION 8 – INSURANCE REQUIREMENTS**

Insurance:

Prior to commencing work, Ceres shall procure and maintain, at Ceres' own cost and expense for the duration of the agreement, the following insurance against claims for injuries to person or damages to property which may arise from, or in connection with, the performance of the work or services hereunder by Ceres, agents, representatives, employees, or subcontractors. The cost of such insurance shall be included in the Proposal.

Ceres shall maintain limits no less than: Commercial General/Umbrella Liability Insurance- $2,000,000.00 aggregate/one million dollars $1,000,000.00 per occurrence. Coverage is provided on a claims-made or preferably on an occurrence basis. The insurance shall include coverage for the following:

- Premise/Operations
- Explosion, Collapse and underground Property Damage Hazard (only when applicable to the project)

- Products/Completed Operations
- Contractual
- Independent Contractors
- Broad Form Property Damage
- Personal Injury

Business Automobile/Umbrella Liability Insurance- $1,000,000 limit per accident for property damage and personal injury.

- Owned/Leased Autos
- Non-owned Autos
- Hired Autos

This policy shall include Employers'/Umbrella Liability coverage for $1,000,000 per accident.

Workers' Compensation coverage is required as a condition of performing work or services for the Client, whether or not the Ceres is otherwise required by law to provide such coverage. Statutory limits are required by Georgia state law, and employer's liability limits of $500,000 each accident, $500,000 policy limit, and $500,000 each employee.

Environmental Liability Insurance- $1,000,000 per occurrence. Pollution Liability Insurance Covering claims for injuries to members of the public or damage to property of others arising out of covered act or omission of the Contractor or any of its employees, agents, subcontractors, or sub-consultants, including Premises and/or Operations, Independent Contractors; Broad Form Property Damage and a Contractual Liability Endorsement with One Million Dollars ($1,000,000) per occurrence and annual aggregate.

Other Insurance Provisions

Commercial General Liability and Automobile Liability Coverage's

The Client, Members of their Commissions, boards, commissioners and committees, officers, agents, employees and volunteers are to be covered as additional insured as respects: liability arising out of activities performed by or on behalf of Ceres; products and completed operations of the Ceres or premises on which Ceres is performing on behalf of the CLIENT. The coverage shall contain no special

limitations on the scope of protection afforded to the CLIENT, members of their Commissions, boards, commissions and committees, officers, agents, employees and volunteers.

Ceres' insurance coverage shall be primary insurance as respects the CLIENT, members of their Commissions, boards, commissioners and committees, officers, agents, employees and volunteers. Any insurance or self-insurance maintained by the CLIENT, members their Commissions, boards, commissions and committees, officers, agents employees and volunteers shall be in excess of Ceres' insurance and shall not contribute with it.

Any failure to comply with reporting provisions of the policies shall not affect coverage provided to the CLIENT, members of their Commissions, boards, commissions and committees, officers, agents, employees and volunteers.

Coverage shall state Ceres' insurance shall apply separately to each insured against whom a claim is made or suit is brought, except with respect to the limits of the insurer's liability.

Worker's' Compensation and Employer's Liability and Property Coverage's

The insurer shall agree to waive all rights of subrogation against the CLIENT, members of their Commissions, boards, commissioners and committees, officers, agents, employees and volunteers for losses arising from activities and operations of CERES in the performance of services under this agreement.

Umbrella Liability Coverage – Ceres' shall purchase and maintain a policy of Umbrella Liability Coverage in excess of the primary insurance afforded above and including all operations of the proposer, with a minimum limit of $10,000,000.00.

All Coverage's Each insurance policy required by this clause shall be endorsed to state that coverage shall not be suspended, voided, canceled, reduces in coverage or in limits except after (30) days prior written notice has been given to the CLIENT.

If CERES, for any reason, fails to maintain insurance coverage which is required pursuant to this Agreement, this shall be deemed a material breach of contract. The CLIENT, at its sole option, may terminate their respective Agreement and obtain damages from the CERES resulting from said breach.

Alternatively, the Client may purchase such required insurance coverage, but has no special obligation to do so. Without further notice to Ceres, the Client may deduct from sums due to Ceres any premium costs advanced by the Client for such insurance.

The Client names as "additional insured" as its interest may appear.

Deductibles and Self-Insured Retention's

Any deductibles or self-insured retentions must be declared to and approved by the CLIENT. At the option of the CLIENT, the insurer shall reduce or eliminate such deductibles or self-insured retentions as respects the CLIENT, members of its Client Commissions, boards, commissions and committees, officers, agents, employees and volunteers; or Ceres shall procure a bond guaranteeing payment of losses, related investigation, claim administration and defense expensed.

Acceptability of Insurers

Insurance is to be with Georgia admitted insures rated A or better by A.M. Best's rating service.

Verification of Coverage

CERES shall furnish the CLIENT with certificates of insurance, with original endorsements affecting coverage required by this clause. The certificates and endorsements for each policy are to be signed by a person authorized by that insurer to bind coverage on its behalf. The certificates and endorsements are to be received and approved by the CLIENT before work commences.

Subcontractors

CERES shall include each of its subcontractors as insureds under the policies of insurance required herein.

Subrogation:

All insurance shall include a waiver of subrogation in favor of the CLIENT and principals for whom the CLIENT is working, including any and all co-lessors of such principal, and shall be subject to the approval of the CLIENT. Insurance provided for comprehensive general liability, comprehensive automobile and water vehicle liability, and umbrella liability shall name the CLIENT as an additional insured party and shall be primary. Certificates shall indicate the waiver of subrogation in favor of the CLIENT and any principal for whom the CLIENT is working, including any and all co-lessors of such principal, and the contractual liability assumed under the Indemnity Provision of this Section, and shall specify that in the event of cancellation or material change in coverage, at least sixty (60) days prior written notice will be given to the CLIENT.

## SECTION 9 – TERMINATION

This Agreement may be terminated by the Client or Ceres, should Ceres or Client fail to provide in any substantial manner the services and/or commodities required under this Agreement, or otherwise fails to comply with the terms of this Agreement or the Agreement Documents, or violates any ordinance, regulation or other law which applies to its performance under this Agreement.

Termination for Convenience

The Client may terminate this Contract, at any time, for any reason by giving at least fifteen (15) days notice in writing to the CERES. The CLIENT, at its option, may give CERES a reasonable period of time to cure the noncompliance. If the Contract is terminated by the Client as provided herein, CERES will be entitled to receive payment for those services reasonably performed to the date of termination.

Termination for Cause

If Ceres fails to comply with any of the terms and conditions of this Contract, the Client may give notice, in writing, all deficiencies claimed. The notice will be sufficient for all purposes if it describes the default in general terms. If all defaults are not cured and corrected within a reasonable period as specified in the notice, the Client may, with no further notice, declare this Contract terminated. CERES will thereafter be entitled to receive payment for those services reasonable performed to the date of termination, less the amount of reasonable damages suffered by Client, by reason of Ceres' failure to comply with this Contract.

DELAYS AND EXCUSED PERFORMANCE/FORCE MAJEURE.

Ceres shall not be considered in default by reason of failure, which arises out of causes reasonably beyond Ceres' control, and without its fault or negligence. Such causes may include, however, not limited to: Acts of God, the CLIENT's omissive and commissive failures, natural or public health emergencies, labor disputes, freight embargos.

## SECTION 10 – INDEPENDENT CONTRACTOR

While in the performance of providing the services outlined herein or carrying out other obligations under this Contract, CERES shall be acting in the capacity of independent contractor and not as an employee of CLIENT. CLIENT shall not be obligated to any person, firm, corporation, or other entity of any obligation of CERES arising from the performance of services under this Contract. Nothing contained in this Contract is intended to, or shall be construed in any manner, as creating or establishing the relationship of employer/employee between the parties.

CERES shall at all times remain an independent contractor with respect to the services to be performed under this Contract. CERES understands and agrees that CLIENT shall be exempt from payment of all Unemployment Compensation, FICA, retirement, life and/or medical insurance and benefits, including Worker's Compensation insurance for any member, manager, employee, agent, servant, or volunteer of CERES, as CERES is an independent contractor.

**SECTION 11 – CONTRACT EXECUTION AND AMENDMENT**

This Contract, together with Exhibit A, B, and C represent the entire agreement between Client and Ceres. This Contract supersedes all prior negotiations, representations, or agreements, either written or oral. This Contract may be amended only by written instrument signed by both parties.

**SECTION 12 – APPLICABLE LAW AND VENUE**

This Contract shall be consummated in the State of Georgia and shall be governed and construed in accordance with the laws of the State of Georgia. Venue shall be in the Chatham County, State of Georgia; and by entering into this Contract, Ceres expressly waives any objections it has or may have to jurisdiction and venue, regardless of Ceres' residence or domicile.

**SECTION 13 – INDEMNIFICATION**

To the fullest extent permitted by law, Ceres shall protect, defend, indemnify, save and hold harmless Client, all Client departments, agencies, boards and commissions its officers, agents, servants and employees including volunteers from and against any and all claims, demands, expense and liability arising out of liability or death to any person or the damage, loss or destruction of any property which may occur or in any way grow out of any act or omission of Ceres, its agents, servants, and employees while performing any of the services contemplated under this Contract and any and all costs, expense or attorney's fees incurred by Ceres as a result of any such claims, demands and/or causes of action, except for those claims, demands, or causes of action arising out of the negligence of Client, its agents and/or employees. Ceres agrees to investigate, handle, respond to, provide defense for, and defend any such claims, demands, or causes of action at its sole expense, and agrees to bear all other costs and expenses related thereto, even if proven to be groundless, false or fraudulent.

**SECTION 14 – NOTICES**

Any communications by either party to the other shall be deemed to be duly given if set forth in writing, and personally delivered or sent by mail, registered or certified, postage prepaid with return receipt requested as follows:

Notices should be sent to CLIENT at the following address:

Town of Thunderbolt
Town Administrator
2821 River Drive
Thunderbolt, GA 31404

Notices should be sent to CERES at the following address:

CERES ENVIRONMENTAL SERVICES, INC.
ATTN: Tia Laurie
6968 Professional Parkway
Sarasota, FL 34240
800-218-4424

Written notices delivered personally shall be deemed communicated as of actual receipt. Mailed notices shall be deemed communicated five (5) days after deposit in the mail, postage prepaid, certified, in accordance with this Section.

**SECTION 15 – SEVERABILITY**

The parties to this Contract understand and agree that the provisions herein, shall, between them, have the effect of law, but in reference to matters not provided herein, the Contract shall be governed by the regulations of the United States and the laws of the State of Georgia. If any provision of this Contract is held to be illegal, invalid, or unenforceable under present or future laws effective during the term of this Contract, such provision is fully severable, and this Contract must be construed and enforced as if such illegal, invalid, or unenforceable provisions never comprised a part of this Contract and the remaining provisions of this Contract remain in full force and effect and may not be affected by the illegal, invalid, or unenforceable provision or its severance from this Contract.

**SECTION 16 – ASSIGNMENT**

This Contract may not be assigned or transferred at any time to any person, firm, corporation or other legal entity except with the express prior written approval of CLIENT.

**SECTION 17 - DISCRIMINATION CLAUSE**

Ceres agrees to abide by the requirements of the following as applicable: Title VI and VII of the Civil Rights Act of 1964, as amended by the Equal Opportunity Act of 1972, Federal Executive Order 11246, the Federal Rehabilitation Act of 1973, as amended, the Vietnam Era Veteran's Readjustment Assistance Act of 1974, Title IX of the Education Amendments of 1972, the Age Act of 1975, and Ceres agrees to abide by the requirements of the Americans with Disabilities Act of 990. CERES agrees to provide a work environment free of potential harassment and not to discriminate in its employment practices and will render services under this Contract without regard to race, color, religion, sex, sexual orientation, national origin, veteran status, political affiliation, or disabilities. Any act of discrimination committed by Ceres, or failure to comply with these statutory obligations when applicable shall be grounds for termination of this Contract.

**SECTION 18 -OWNERSHIP OF RECORDS**

When applicable, all records, reports, documents, or other material related to this Contract and/or obtained or prepared by Ceres in connection with the performance of the services contracted herein, shall become the property of Client, and shall, upon request, be returned by Ceres to Client, at Ceres' expense, at the termination or the expiration of this Contract.

**SECTION 19 - FEDERAL CLAUSES**

CERES agrees to the following miscellaneous terms and provisions for all federally funded and reimbursable contracts:

**A. Contracting with small and minority businesses, women's business enterprises, and labor surplus area firms.**

(1) In accordance with 2 C.F.R. § 200.321, CERES shall take all necessary affirmative steps to assure that minority businesses, women's business enterprises, and labor surplus area firms are used when possible.

(2) Affirmative steps for the prime contractor to take regarding subcontractors must include:

(a) Placing qualified small and minority businesses and women's business enterprises on solicitation lists.

(b) Assuring that small and minority businesses, and women's business enterprises are solicited whenever they are potential sources.

(c) Dividing total requirements, when economically feasible, into smaller tasks or quantities to permit maximum participation by small and minority businesses, and women's business enterprises;

(d) Establishing delivery schedules, where the requirement permits, which encourage participation by small and minority businesses, and women's business enterprises;

(e) Using the services and assistance, as appropriate, of such organizations as the Small Business Administration and the Minority Business Development Agency of the Department of Commerce.

(3) Contractor shall sign the Statement of Compliance - Small and Minority Businesses, Women's Business Enterprises, and Labor Surplus Area Firms.

**B. Debarment and Suspension:**

CLIENT and CERES are subject to the debarment and suspension regulations implementing Executive Order 12549, Debarment and Suspension (1986) and Executive Order 12689, Debarment and Suspension (1989) at 2 C.F.R. Part 3000 (Non- procurement Debarment and Suspension).

(1) This contract is a covered transaction for purposes of 2 C.F.R. pt. 180 and 2 C.F.R. pt. 3000. As such CERES is required to verify that none of the contractor, its principals (defined at 2 C.F.R. § 180.995), or its affiliates (defined at 2 C.F.R. § 180.905) are excluded (defined at 2 C.F.R. § 180.940) or disqualified (defined at 2 C.F.R. § 180.935).

(2) CERES must comply with 2 C.F.R. pt. 180, subpart C and 2 C.F.R. pt. 3000, subpart C and must include a requirement to comply with these regulations in any lower tier covered transaction it enters into.

(3) This certification is a material representation of fact relied upon by CERES. If it is later determined that CERES did not comply with 2 C.F.R. pt. 180, subpart C and 2 C.F.R. pt. 3000, subpart C, in addition to remedies available to CLIENT, the Federal Government may pursue available remedies, including but not limited to suspension and/ or debarment.

(4) CERES agrees to comply with the requirements of 2 C.F.R. pt. 180, subpart C and 2 C.F.R. pt. 3000, sub-part C while this offer is valid and throughout the period of any contract that may arise from this offer. The bidder or proposer further agrees to include a provision requiring such compliance in its lower tier covered transactions.

**C. Byrd Anti-Lobbying Amendment 31 U.S.C. § 1352 (as amended)**

Contractors who bid for an award of $100,000 or more shall file the required certification. Each tier certifies to the tier above that it will not and has not used Federal appropriated funds to pay any person or organization for influencing or attempting to influence an officer or employee of any agency, a member

of Congress, officer or employee of Congress, or an employee of a member of Congress in connection with obtaining any Federal contract, grant, or any other award covered by 31 U.S.C. § 1352. Each tier shall also disclose any lobbying with non-Federal funds that takes place in connection with obtaining any Federal award. Such disclosures are forwarded from tier to tier, up to the recipient. Contractor shall sign the Byrd Anti Lobbying Certification for Contracts, Grants, Loans, and Cooperative Agreements form.

**D. DHS Seal, Logo, and Flags**

Ceres shall not use the Department Homeland Security seal(s), logos, crests, or reproductions of flags or likenesses of DHS agency officials without specific FEMA pre-approval.

**E. Compliance with Federal Law, Regulations, and Executive Orders**

Contract financial assistance will be used to fund the contract only. The contractor will comply will all applicable federal law, regulations, executive orders, FEMA policies, procedures, and directives.

**F. No Obligation by Federal Government**

The Federal Government is not a party to this contract and is not subject to any obligations or liabilities to the non-Federal entity, contractor, or any other party pertaining to any matter resulting from the contract.

**G. Program Fraud and False or Fraudulent Statements or Related Acts**

CERES acknowledges that 31 U.S.C. Chap. 38 (Administrative Remedies for False Claims and Statements) applies to the contractor's actions pertaining to this contract. Ceres SHALL ABIDE BY THE FOLLOWING PROVISIONS IF THE BOXES ARE CHECKED.

**H. PROHIBITION ON CONTRACTING FOR COVERED TELECOMMUNICATIONS EQUIPMENT OR SERVICES.**

(a) *Definitions.* As used in this clause, the terms backhaul; covered foreign country; covered telecommunications equipment or services; interconnection arrangements; roaming; substantial or essential component; and telecommunications equipment or services have the meaning as defined in FEMA Policy 405-143-1, Prohibitions on Expending FEMA Award Funds for Covered Telecommunications Equipment or Services (Interim), as used in this clause—

(b) *Prohibitions.*

(1) Section 889(b) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019, Pub. L. No. 115-232, and 2 C.F.R. § 200.216 prohibit the head of an executive agency on or after Aug.13, 2020, from obligating or expending grant, cooperative agreement, loan, or loan guarantee funds on certain telecommunications products or from certain entities for national security reasons.

(2) Unless an exception in paragraph (c) of this clause applies, the contractor and its subcontractors may not use grant, cooperative agreement, loan, or loan guarantee funds from the Federal Emergency Management Agency to:

(i) Procure or obtain any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology of any system;

(ii) Enter into, extend, or renew a contract to procure or obtain any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology of any system;

(iii) Enter into, extend, or renew contracts with entities that use covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system; or

(iv) Provide, as part of its performance of this contract, subcontract, or other contractual instrument, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Exceptions.*

(1) This clause does not prohibit contractors from providing—

(i) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Telecommunications equipment that cannot route or redirect user data traffic or permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) By necessary implication and regulation, the prohibitions also do not apply to:

(i) Covered telecommunications equipment or services that:

i. Are *not used* as a substantial or essential component of any system; *and*

ii. Are *not used* as critical technology of any system.

(ii) Other telecommunications equipment or services that are not considered covered telecommunications equipment or services.

(d) *Reporting requirement.*

(1) In the event the CERES identifies covered telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system, during contract performance, or CERES is notified of such by a subcontractor at any tier or by any other source, CERES shall report the information in paragraph (d)(2) of this clause to the recipient or subrecipient, unless elsewhere in this contract are established procedures for reporting the information.

(2) CERES shall report the following information pursuant to paragraph (d)(1) of this clause:

(i) Within one business day from the date of such identification or notification: The contract number; the order number(s), if applicable; supplier name; supplier unique entity identifier (if known); supplier Commercial and Government Entity (CAGE) code (if known); brand; model number (original equipment manufacturer number, manufacturer part number, or wholesaler number); item description; and any readily available information about mitigation actions undertaken or recommended.

(ii) Within 10 business days of submitting the information in paragraph (d)(2)(i) of this clause: Any further available information about mitigation actions undertaken or recommended. In addition, CERES shall describe the efforts it undertook to prevent use or submission of covered telecommunications equipment or services, and any additional efforts that will be incorporated to prevent future use or submission of covered telecommunications equipment or services.

(e) *Subcontracts.* CERES shall insert the substance of this clause, including this paragraph (e), in all subcontracts and other contractual instruments.

**I. DOMESTIC PREFERENCES FOR PROCUREMENTS**

As appropriate, and to the extent consistent with law, CERES should, to the greatest extent practicable, provide a preference for the purchase, acquisition, or use of goods, products, or materials produced in the United States. This includes, but is not limited to iron, aluminum, steel, cement, and other manufactured products.

For purposes of this clause:

*Produced in the United States* means, for iron and steel products, that all manufacturing processes, from the initial melting stage through the application of coatings, occurred in the United States.

*Manufactured products* mean items and construction materials composed in whole or in part of non-ferrous metals such as aluminum; plastics and polymer-based products such as polyvinyl chloride pipe; aggregates such as concrete; glass, including optical fiber; and lumber.

**J. COPYRIGHT AND DATA RIGHTS**

Ceres grants to the Client, a paid-up, royalty-free, nonexclusive, irrevocable, worldwide license in data first produced in the performance of this contract to reproduce, publish, or otherwise use, including prepare derivative works, distribute copies to the public, and perform publicly and display publicly such data. For data required by the contract but not first produced in the performance of this contract, Ceres will identify such data and grant to the Client or acquires on its behalf a license of the same scope as for data first produced in the performance of this contract. Data, as used herein, shall include any work subject to copyright under 17 U.S.C. § 102, for example, any written reports or literary works, software and/or source code, music, choreography, pictures or images, graphics, sculptures, videos, motion pictures or other audiovisual works, sound and/or video recordings, and architectural works. Upon or before the completion of this contract, Ceres will deliver to the Client data first produced in the

performance of this contract and data required by the contract but not first produced in the performance of this contract in formats acceptable by the Client.

[ **X** ] **Federally Assisted Construction Contract**

As required by 41 C.F.R. Part 60-1.4(b), during the performance of this contract, CERES agrees as follows:

(1) Ceres will not discriminate against any employee or applicant for employment because of race, color, religion, sex, sexual orientation, gender identity, or national origin. The Ceres will take affirmative action to ensure that applicants are employed, and that employees are treated during employment without regard to their race, color, religion, sex, sexual orientation, gender identity, or national origin. Such action shall include, but not be limited to the following:

Employment, upgrading, demotion, or transfer; recruitment or recruitment advertising; layoff or termination; rates of pay or other forms of compensation; and selection for training, including apprenticeship. Ceres agrees to post in conspicuous places, available to employees and applicants for employment, notices to be provided setting forth the provisions of this nondiscrimination clause.

(2) Ceres will, in all solicitations or advertisements for employees placed by or on behalf of the Ceres, state that all qualified applicants will receive consideration for employment without regard to race, color, religion, sex, sexual orientation, gender identity, or national origin.

(3) Ceres will not discharge or in any other manner discriminate against any employee or applicant for employment because such employee or applicant has inquired about, discussed, or disclosed the compensation of the employee or applicant or another employee or applicant. This provision shall not apply to instances in which an employee who has access to the compensation information of other employees or applicants as a part of such employee's essential job functions discloses the compensation of such other employees or applicants to individuals who do not otherwise have access to such information, unless such disclosure is in response to a formal complaint or charge, in furtherance of an investigation, proceeding, hearing, or action, including an investigation conducted by the employer, or is consistent with Ceres' legal duty to furnish information.

(4) Ceres will send to each labor union or representative of workers with which he has a collective bargaining agreement or other contract or understanding, a notice to be provided advising the said labor union or workers' representatives of Ceres' commitments under this section, and shall post copies of the notice in conspicuous places available to employees and applicants for employment.

(5) Ceres will comply with all provisions of Executive Order 11246 of September 24, 1965, and of the rules, regulations, and relevant orders of the Secretary of Labor.

(6) Ceres will furnish all information and reports required by Executive Order 11246 of September 24, 1965, and by rules, regulations, and orders of the Secretary of Labor, or pursuant thereto, and will permit access to his books, records, and accounts by the administering agency and the Secretary of Labor for purposes of investigation to ascertain compliance with such rules, regulations, and orders.

(7) In the event of Ceres' noncompliance with the nondiscrimination clauses of this contract or with any of the said rules, regulations, or orders, this contract may be canceled, terminated, or suspended in whole or in part and the Ceres may be declared ineligible for further Government contracts or federally assisted construction contracts in accordance with procedures authorized in Executive Order 11246 of September 24, 1965, and such other sanctions may be imposed and remedies invoked as provided in Executive Order 11246 of September 24, 1965, or by rule, regulation, or order of the Secretary of Labor, or as otherwise provided by law.

(8) Ceres will include the portion of the sentence immediately preceding paragraph (1) and the provisions of paragraphs (1) through (8) in every subcontract or purchase order unless exempted by rules, regulations, or orders of the Secretary of Labor issued pursuant to section 204 of Executive Order 11246 of September 24, 1965, so that such provisions will be binding upon each subcontractor or vendor. Ceres will take such action with respect to any subcontract or purchase order as the administering agency may direct as a means of enforcing such provisions, including sanctions for noncompliance:
*Provided,* however, that in the event Ceres becomes involved in, or is threatened with, litigation with a subcontractor or vendor as a result of such direction by the administering agency, Ceres may request the United States to enter into such litigation to protect the interests of the United States.

The Client further agrees that it will be bound by the above equal opportunity clause with respect to its own employment practices when it participates in federally assisted construction work: *Provided,* that if the Client so participating is a state or local government, the above equal opportunity clause is not applicable to any agency, instrumentality or subdivision of such government which does not participate in work on or under the contract.
The applicant agrees that it will assist and cooperate actively with the administering agency and the Secretary of Labor in obtaining the compliance of Ceres and subcontractor with the equal opportunity clause and the rules, regulations, and relevant orders of the Secretary of Labor, that it will furnish the administering agency and the Secretary of Labor such information as they may require for the supervision of such compliance, and that it will otherwise assist the administering agency in the discharge of the agency's primary responsibility for securing

compliance.

The Client further agrees that it will refrain from entering into any contract or contract modification subject to Executive Order 11246 of September 24, 1965, with a Ceres debarred from, or who has not demonstrated eligibility for, Government contracts and federally assisted construction contracts pursuant to the Executive Order and will carry out such sanctions and penalties for violation of the equal opportunity clause as may be imposed upon Ceress and subcontractor by the administering agency or the Secretary of Labor pursuant to Part II, Subpart D of the Executive Order. In addition, the Client agrees that if it fails or refuses to comply with these undertakings, the administering agency may take any or all of the following actions: Cancel, terminate, or suspend in whole or in part this grant (contract, loan, insurance, guarantee); refrain from extending any further assistance to the applicant under the program with respect to which the failure or refund occurred until satisfactory assurance of future compliance has been received from such applicant; and refer the case to the Department of Justice for appropriate legal proceedings."

**[X ] PROCUREMENT OF RECOVERED MATERIALS**

CLIENT and CERES must comply with section 6002 of the Solid Waste Disposal Act, as amended by the Resource Conservation and Recovery Act. The requirements of Section 6002 include procuring only items designated in guidelines of the Environmental Protection Agency (EPA) at 40 CFR part 247 that contain the highest percentage of recovered materials practicable, consistent with maintaining a satisfactory level of competition, where the purchase price of the item exceeds $10,000 or the value of the quantity acquired during the preceding fiscal year exceeded $10,000; procuring solid waste management services in a manner that maximizes energy and resource recovery; and establishing an affirmative procurement program for procurement of recovered materials identified in the EPA guidelines.

(1) In the performance of this contract, CERES shall make maximum use of products containing recovered materials that are EPA designated items unless the product cannot be acquired:

(i) Competitively within a timeframe providing for compliance with the contract performance schedule;
(ii) Meeting contract performance requirements; or
(iii) At a reasonable price.

(2) Information about this requirement is available at EPA's Comprehensive Procurement Guidelines web site, http://www.epa.gov/cpg/. The list of EPA-designate items is available at http://www.epa.gov/cpg/products.htm."

**[ X ] FEMA REQUIREMENTS**

**(1) CHANGE OR MODIFICATION.**

To be eligible for FEMA assistance under a FEMA grant or cooperative agreement, the cost of a change, modification, change order, or constructive change must be allowable, allocable, within the scope of the grant or cooperative agreement, and reasonable for the completion of the project scope. Accordingly, CERES shall comply with the following:

**CHANGE IN THE WORK OR TERMS OF THE PROJECT DOCUMENTS**

(1) Without invalidating the contract, Client reserves and shall have the right, from time to time to make such increases, decreases or other changes in the character or quantity of the work as may be considered necessary or desirable to complete fully and acceptably the project in a satisfactory manner in accordance with the scope of the FEMA grant or cooperative agreement. Any extra or additional Services within the scope of the Request must be accomplished by means of appropriate Field Orders, Change Orders, or Amendments.

(2) The Contract Administrator shall have the right to approve and issue Field Orders, Change Order, or Amendments setting forth written interpretations of the intent of the project documents and ordering minor changes in work execution, providing the Field Order, Change Order, or Amendment involves no change in the Contract Price or the Contract Time.

(3) Changes in the quantity or character of the Services within the scope of the Request which are not properly the subject of Field Orders, including all changes resulting in changes in the Contract Price, or the Contract Time, shall be authorized only by Change Orders or Amendments approved in advance and issued in accordance with the provisions of CLIENT'S Procurement Code, as amended from time to time.

**(2) ACCESS TO RECORDS.**

(a) In addition to the requirements of Executive Order 11246 of September 24, 1965, Ceres and their successors, transferees, assignees, and subcontractors acknowledge and agree to comply with applicable provisions governing Department and FEMA access to records, accounts, documents, information, facilities, and staff. See DRS Standard Terms and Conditions, v 3.0, if XXVI (2013).

(b) CERES agrees to provide CLIENT, the FEMA Administrator, the Comptroller General of the United States, or any of their authorized representatives, access to any books, documents, papers, and records of CERES which are directly pertinent to this contract for the purposes of making audits, examinations, excerpts, and transcriptions.

(c) CERES agrees to permit any of the foregoing parties to reproduce by any means whatsoever or to copy excerpts and transcriptions as reasonably needed.

(d) CERES agrees to provide the FEMA Administrator or his authorized representative access to construction or other work sites pertaining to the work being completed under the contract.

**[X] CONTRACTS IN EXCESS OF $100,000.00 THAT INVOLVE THE EMPLOYMENT OF MECHANICS OR LABORERS**

**Contract Work Hours and Safety Standards Act**

(1) Overtime requirements. No contractor or subcontractor contracting for any part of the contract work which may require or involve the employment of laborers or mechanics shall require or permit any such laborer or mechanic in any workweek in which he or she is employed on such work to work in excess of forty hours in such workweek unless such laborer or mechanic receives compensation at a rate not less than one and one-halftimes the basic rate of pay for all hours worked in excess of forty hours in such workweek.

(2) Violation; liability for unpaid wages; liquidated damages. In the event of any violation of the clause set forth in this section the contractor and any subcontractor responsible therefor shall be liable for the unpaid wages. In addition, such contractor and subcontractor shall be liable to the United States (in the case of work done under contract for the District of Columbia or a territory, to such District or to such territory), for liquidated damages. Such liquidated damages shall be computed with respect to each individual laborer or mechanic, including watchmen and guards, employed in violation of the clause set forth in this section, in the sum of $10 for each calendar day on which such individual was required or permitted to work in excess of the standard workweek of forty hours without payment of the overtime wages required by the clause set forth in this section.

(3) Withholding for unpaid wages and liquidated damages. CLIENT shall upon its own action or upon written request of an authorized representative of the Department of Labor withhold or cause to be withheld, from any moneys payable on account of work performed by CERES or subcontractor under any such contract or any other Federal contract with the same prime contractor, or any other federally-assisted contract subject to the Contract Work Hours and Safety Standards Act, which is held by the same prime contractor, such sums as may be determined to be necessary to satisfy any liabilities of such contractor or subcontractor for unpaid wages and liquidated damages as provided in the clause set forth in this section.

(4) Subcontracts. CERES or subcontractor shall insert in any subcontracts the clauses set forth in paragraph (1) through (4) of this section and also a clause requiring the subcontractors to include these clauses in any lower tier subcontracts. The prime contractor shall be responsible for compliance by any subcontractor or lower tier subcontractor with the clauses set forth in paragraphs (1) through (4) of this section.

**[X] CLEAN AIR ACT & FEDERAL WATER POLLUTION CONTROL ACT – CONTRACTS IN EXCESS OF $150,000.00**

(1) CERES agrees to comply with all applicable standards, orders or regulations issued pursuant to the Clean Air Act, as amended, 42 U.S.C. § 7401 et seq.

(2) CERES agrees to report each violation to CLIENT and understands and agrees that CLIENT will, in turn, report each violation as required to assure notification to the Federal Emergency Management Agency (FEMA), and the appropriate Environmental Protection Agency Regional Office.

(3) CERES agrees to include these requirements in each subcontract exceeding $100,000 financed in whole or in part with Federal assistance provided by FEMA. FEDERAL WATER POLLUTION CONTROL ACT (1) CERES agrees to comply with all applicable standards, orders or regulations issued pursuant to the Federal Water Pollution Control Act, as amended, 33 U.S.C. 1251 et seq.

(4) CERES agrees to report each violation to CLIENT and understands and agrees that CLIENT, in turn, report each violation as required to assure notification to the Federal Emergency Management Agency, and the appropriate Environmental Protection Agency Regional Office.

**"Compliance with the Copeland "Anti-Kickback" Act.**

Ceres shall comply with 18 U.S.C. § 874, 40 U.S.C. § 3145, and the requirements of 29 C.F.R. Part 3 as may be applicable, which are incorporated by reference into this contract.
Ceres or subcontractor shall insert in any subcontracts the clause above
and such other clauses as FEMA may by appropriate instructions require, and also a clause requiring the subcontractors to include these clauses in any lower tier subcontracts. Ceres shall be responsible for the compliance by any subcontractor or lower tier subcontractor with all of these contract clauses.

A breach of the contract clauses above may be grounds for termination of the contract,
and for debarment as a Ceres and subcontractor as provided in 29 C.F.R. § 5.12.

**IN WITNESS WHEREOF,** the parties have executed this Contract before the undersigned competent witnesses on the dates hereinafter indicated.

**WITNESS:**

**The Town of Thunderbolt, Georgia**

By: _____

Date: Sept 14 2022

**APPROVED AS TO FORM:**

_____

**Office of the Town Attorney**

**WITNESS:**

August 31, 2022

**CERES ENVIRONMENTAL SERVICES, INC.**

By: _____

Tia Laurie – Corporate Secretary

Date: August 31, 2022

**BYRD ANTI LOBBYING CERTIFICATION FOR CONTRACTS, GRANTS, LOANS, AND COOPERATIVE AGREEMENTS**

**To be submitted with each bid or offer exceeding $100,000.00**

The undersigned certifies, to the best of his or her knowledge and belief, that:

(1) No Federal appropriated funds have been paid or will be paid, by or on behalf of the undersigned, to any person for influencing or attempting to influence an officer or employee of an agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress in connection with the awarding of any Federal contract, the making of any Federal grant, the making of any Federal loan, the entering into of any cooperative agreement, and the extension, continuation, renewal, amendment, or modification of any Federal contract, grant, loan, or cooperative agreement.

(2) If any funds other than Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress in connection with this Federal contract, grant, loan, or cooperative agreement, the undersigned shall complete and submit Standard Form-LLL, "Disclosure Form to Report Lobbying," in accordance with its instructions.

(3) The undersigned shall require that the language of this certification be included in the award documents for all sub-awards at all tiers (including subcontracts, sub-grants, and contracts under grants, loans, and cooperative agreements) and that all sub-recipients shall certify and disclose accordingly.

This certification is a material representation of fact upon which reliance was placed when this transaction was made or entered into. Submission of this certification is a prerequisite for making or entering into this transaction imposed by section 1352, title 31, U.S. Code. Any person who fails to file the required certification shall be subject to a civil penalty of not less than $10,000 and not more than $100,000 for each such failure.

The Contractor, Ceres Environmental Services, Inc. certifies or affirms the truthfulness and accuracy of each statement of its certification and disclosure, if any. In addition, the Contractor understands and agrees that the provisions of 31 U.S.C. §3801 *et seq.* apply to this certification and disclosure, if any.

Signature of Contractor's Authorized Official

Tia Laurie, Corporate Secretary
Name and Title of Contractor's Authorized Official

Date August 31, 2022

**STATEMENT OF COMPLIANCE - SMALL AND MINORITY BUSINESSES, WOMEN'S BUSINESS ENTERPRISES, AND LABOR SURPLUS AREA FIRMS**

The undersigned CONTRACTOR hereby swears under penalty of perjury that CONTRACTOR took the following affirmative steps to assure that minority businesses, women's business enterprises, and labor surplus area firms were used when possible:

(a) Placing qualified small and minority businesses and women's business enterprises on solicitation lists;
(b) Assuring that small and minority businesses, and women's business enterprises are solicited whenever they are potential sources;
(c) Dividing total requirements, when economically feasible, into smaller tasks or quantities to permit maximum participation by small and minority businesses, and women's business enterprises;
(d) Establishing delivery schedules, where the requirement permits, which encourage participation by small and minority businesses, and women's business enterprises;
(e) Using the services and assistance, as appropriate, of such organizations as the Small Business Administration and the Minority Business Development Agency of the Department of Commerce.

Dated August 31, 2022

Ceres Environmental Services, Inc.
Contractor

By _____
(Signature)

By: Tia Laurie, Corporate Secretary
(Name and Title)

| | DESCRIPTION OF SERVICE | UNIT | UNIT PRICE | | 5.9% 2024 Adjustment |
|---|---|---|---|---|---|
| **1. VEGETATIVE DEBRIS** | | | | | |
| a | Pick up vegetative debris from ROW and haul to Debris DMS). (0 to 15 miles) | CUBIC YARD | $ 8.68 | $ | 9.19 |
| b | Pick up vegetative debris from ROW and haul to DMS. (>15 to 30 miles) | CUBIC YARD | $ 8.88 | $ | 9.40 |
| c | Pick up vegetative debris from ROW and haul to DMS. (>30 to 60 miles) | CUBIC YARD | $ 9.18 | $ | 9.72 |
| d | Pick up vegetative debris from ROW and haul to DMS. (>60 miles) | CUBIC YARD | $ 9.48 | $ | 10.04 |
| e | Pick up vegetative debris from ROW and haul to Temporary Debris Aggregation Site (TDAS) (0 to 15 miles) | CUBIC YARD | $ 8.68 | $ | 9.19 |
| f | Pick up vegetative debris from TDAS and haul to DMS or Final Disposal (0 to 15 miles) | CUBIC YARD | $ 9.18 | $ | 9.72 |
| g | Pick up vegetative debris from TDAS and haul to DMS or Final Disposal (>15 to 30 miles) | CUBIC YARD | $ 9.38 | $ | 9.93 |
| h | Pick up vegetative debris from TDAS and haul to DMS or Final Disposal (>30 to 60 miles) | CUBIC YARD | $ 9.68 | $ | 10.25 |
| **2. CONSTRUCTION & DEMOLITION DEBRIS (C&D) and MIXED DEBRIS (Non-Asbestos)** | | | | $ | - |
| a | Pick up C&D or Mixed debris materials from ROW and haul to DMS. (0 to 15 miles) | CUBIC YARD | $ 8.98 | $ | 9.51 |
| b | Pick up C&D or Mixed debris materials from ROW and haul to DMS. (>15 to 30 miles.) | CUBIC YARD | $ 9.18 | $ | 9.72 |
| c | Pick up C&D or Mixed debris materials from ROW and haul to DMS. (>30 to 60 miles.) | CUBIC YARD | $ 9.48 | $ | 10.04 |
| d | Pick up C&D or Mixed debris materials from ROW and haul to DMS. (>60 miles.) | CUBIC YARD | $ 9.78 | $ | 10.36 |
| e | Pick up C&D or Mixed debris materials from ROW and haul to LANDFILL. (0 to 15 miles) | CUBIC YARD | $ 9.98 | $ | 10.57 |
| f | Pick up C&D or Mixed debris materials from ROW and haul to LANDFILL. (>15 to 30 miles) | CUBIC YARD | $ 10.28 | $ | 10.89 |
| g | Pick up C&D or Mixed debris or Mixed from ROW and haul to LANDFILL. (>30 to 60 miles) | CUBIC YARD | $ 10.98 | $ | 11.63 |
| h | Pick up C&D or Mixed debris materials from ROW and haul to LANDFILL. (>60 miles) | CUBIC YARD | $ 11.98 | $ | 12.69 |
| **2. CONSTRUCTION & DEMOLITION DEBRIS (C&D) and MIXED DEBRIS (Asbestos)** | | | | $ | - |
| a | Pick up C&D or Mixed debris materials from ROW and haul to DMS. (0 to 15 miles) | CUBIC YARD | $ 13.98 | $ | 14.80 |
| b | Pick up C&D or Mixed debris materials from ROW and haul to DMS. (>15 to 30 miles.) | CUBIC YARD | $ 14.18 | $ | 15.02 |
| c | Pick up C&D or Mixed debris materialsfrom ROW and haul to DMS. (>30 to 60 miles.) | CUBIC YARD | $ 14.48 | $ | 15.33 |
| d | Pick up C&D or Mixed debris materials from ROW and haul to DMS. (>60 miles.) | CUBIC YARD | $ 14.78 | $ | 15.65 |
| e | Pick up C&D or Mixed debris materials from ROW and haul to LANDFILL. (0 to 15 miles) | CUBIC YARD | $ 14.98 | $ | 15.86 |
| f | Pick up C&D or Mixed debris materials from ROW and haul to LANDFILL. (>15 to 30 miles) | CUBIC YARD | $ 15.28 | $ | 16.18 |
| g | Pick up C&D or Mixed debris materials from ROW and haul to LANDFILL. (>30 to 60 miles) | CUBIC YARD | $ 15.98 | $ | 16.92 |
| h | Pick up C&D or Mixed debris materials from ROW and haul to LANDFILL. (>60 miles) | CUBIC YARD | $ 16.98 | $ | 17.98 |
| **3. WHITE GOODS** | | | | $ | - |
| a | Remove and transport from ROW to DMS. | PER UNIT | $ 42.00 | $ | 44.48 |
| b | Remove and transport from ROW to Recycling Facility or approved disposal facility. | PER UNIT | $ 45.00 | $ | 47.66 |
| c | Transport from DMS to Recycling Facility or approved disposal facility. | PER UNIT | $ 15.00 | $ | 15.89 |
| d | Freon Removal / Recycling and Management | PER UNIT | $ 30.00 | $ | 31.77 |
| **4. SPECIAL WASTE** | | | | $ | - |
| a | Electronic waste removal from ROW and dispose at City approved site. | PER UNIT | $ 29.00 | $ | 30.71 |
| b | Household hazardous waste removal from ROW and dispose at City approved site. | PER POUND | $ 6.49 | $ | 6.87 |
| c | Hazardous waste removal from ROW and dispose at City approved site. | PER POUND | $ 8.49 | $ | 8.99 |
| d | Derelict vehicle removal, transfer / tow of typical passenger car. | EACH | $ 255.00 | $ | 270.05 |

| | | | | | |
|---|---|---|---|---|---|
| e | Derelict vessel removal and transportation to secure storage site. (Vessels under 25 feet) | EACH | $ 850.00 | $ | 900.15 |
| f | Derelict vessel removal and transportation to secure storage site. (Vessels 25 feet and greater) | EACH | $ 1,530.00 | $ | 1,620.27 |
| g | Operation of secure storage site for derelict vehicles/vessels. | PER DAY | $ 1,000.00 | $ | 1,059.00 |
| h | Vessel and Vehicle Fluids Management - draining / removal of fluids from vessel / vehicle, storage of fluids and transportation to a disposal / recycling facility | PER GALLON | $ 8.50 | $ | 9.00 |
| i | Vessel and Vehicle Hazardous Materials Management - removal of hazardous materials from vessel / vehicle, (e.g. batteries), storage of same and transportation to a disposal / recycling | PER GALLON | $ 8.50 | $ | 9.00 |
| j | Crushing of Vessels for Disposal | PER FOOT | $ 5.50 | $ | 5.82 |
| k | Waterway Debris Removal - removal of storm debris from marine environments, including canals, streams and waterfronts | CUBIC YARD | $ 72.55 | $ | 76.83 |
| l | Concrete Removal - Load and haul broken concrete from ROW and dispose at City approved site (0 to 15 miles) | CUBIC YARD | $ 11.50 | $ | 12.18 |
| m | Concrete Removal - Load and haul broken concrete from ROW and dispose at City approved site (>15 to 30 miles) | CUBIC YARD | $ 12.25 | $ | 12.97 |
| n | Concrete Removal - Load and haul broken concrete from ROW and dispose at City approved site (>30 to 60 miles) | CUBIC YARD | $ 13.50 | $ | 14.30 |
| o | Concrete Removal - Load and haul broken concrete from ROW and dispose at City approved site (>60 miles) | CUBIC YARD | $ 14.50 | $ | 15.36 |
| p | | | | | |
| q | Soil, Mud, Silt or Sand - Load and from location and dispose at City approved site (0 to 15 miles) | CUBIC YARD | $ 16.75 | $ | 17.74 |
| r | Soil, Mud, Silt or Sand - Load and from location and dispose at City approved site (>15 to 30 miles) | CUBIC YARD | $ 17.50 | $ | 18.53 |
| s | Soil, Mud, Silt or Sand - Load and from location and dispose at City approved site (>30 to 60 miles) | CUBIC YARD | $ 18.75 | $ | 19.86 |
| t | Soil, Mud, Silt or Sand - Load and from location and dispose at City approved site (>60 miles) | CUBIC YARD | $ 20.00 | $ | 21.18 |
| u | Sand and Soil Screening & Collection: Removal and screening of debris- laden sand from public property, stockpiling debris at DMS, and replacing screened sand atCity designated | CUBIC YARD | $ 13.25 | $ | 14.03 |
| v | Removal and disposal of animal carcasses | PER POUND | $ 0.85 | $ | 0.90 |
| **5. HAZARDOUS STUMPS and HAZARDOUS TREES** | | | | | |
| a | Removal of hazardous stump from ROW or public property and transportation to DMS. 24" to 36" diameter. | EACH | $ 248.00 | $ | 262.63 |
| b | Removal of hazardous stump from ROW or public property and transportaton to DMS. >36" to 48" diameter. | EACH | $ 328.00 | $ | 347.35 |
| c | Removal of hazardous stump from ROW or public property and transportation to DMS. >48" diameter. | EACH | $ 428.00 | $ | 453.25 |
| d | Backfill - supply and placement of clean fill dirt into holes created by stump removal in the ROW. | CUBIC YARD | $ 29.00 | $ | 30.71 |
| e | Removal of hazardous trees (leaning or damaged) from ROW or public property that are 13" to 24" with the trunk measured at DBH. | EACH | $ 138.00 | $ | 146.14 |
| f | Removal of hazardous trees (leaning or damaged) from ROW or public property that are >24" to 36" with the trunk measured at DBH. | EACH | $ 198.00 | $ | 209.68 |
| g | Removal of hazardous trees (leaning or damaged) from ROW or public property that are >36" to 48" with the trunk measured at DBH. | EACH | $ 248.00 | $ | 262.63 |
| h | Removal of hazardous trees (leaning or damaged) from ROW or public property that are >48" with the trunk measured at DBH. | EACH | $ 298.00 | $ | 315.58 |
| i | Removal of hazardous hanging limbs from ROW or public property that are >2 inches. | PER TREE | $ 92.00 | $ | 97.43 |
| **6. DEMOLITION OF STRUCTURES** | | | | | |
| | Structure demolition with construction and demolition debris loaded at the designated work zone and hauled to a City approved landfill. Contractor shall disconnect and cap the sewer and water line and coordinate all required disconnects by private utility companies. Search safely accessible structures, including garages and detached outbuildings, and remove all white goods, electronic waste, and household hazardous waste for ROW collection. Does not include removal of concrete slabs. | | | | |
| a | 0 to 15 miles one-way haul | CUBIC YARD | $ 16.48 | $ | 17.45 |
| b | >15 to 30 miles one-way haul | CUBIC YARD | $ 16.78 | $ | 17.77 |
| c | >30 to 60 miles one-way haul | CUBIC YARD | $ 17.38 | $ | 18.41 |
| d | >60 miles one-way haul | CUBIC YARD | $ 18.28 | $ | 19.36 |
| | Structure demolition with regulated asbestos containing (RACM) construction and demolition debris loaded at the designated work zone and hauled to a City approved landfill. Contractor shall disconnect and cap the sewer and water line and coordinate all required disconnects by private utility companies. Search safely accessible structures, including garages and detached outbuildings, and remove all white goods, electronic waste, household hazardous waste for ROW collection. Does not include removal of concrete slabs. | | | | |

| | | | | | |
|---|---|---|---|---|---|
| d | 0 to 15 miles one-way haul | CUBIC YARD | $ 25.48 | $ | 26.98 |
| e | >15 to 30 miles one-way haul | CUBIC YARD | $ 25.78 | $ | 27.30 |
| f | >30 to 60 miles one-way haul | CUBIC YARD | $ 27.38 | $ | 29.00 |
| g | >60 miles one-way haul | CUBIC YARD | $ 28.28 | $ | 29.95 |
| **7. PROCESSING / REDUCING DEBRIS & DEBRIS SITE MANAGEMENT** | | | | | |
| a | Grinding / chipping vegetative debris, based on incoming cubic yards. | CUBIC YARD | $ 2.55 | $ | 2.70 |
| b | Burning vegetative debris, based on incoming cubic yards. | CUBIC YARD | $ 0.25 | $ | 0.26 |
| c | Processing and/or compacting C&D materials and mixed debris, based on incoming cubic yards. | CUBIC YARD | $ 0.85 | $ | 0.90 |
| d | Processing and/or compacting concrete materials and masonry, based on incoming cubic yards. | CUBIC YARD | $ 6.48 | $ | 6.86 |
| **8. DEBRIS MANAGEMENT SITE MANAGEMENT** | | | | | |
| Debris Management Site (DMS) Management, includes the cost of site preparation, site management, acceptance, erosion control, and site closeout based on incoming cubic yards. | | CUBIC YARD | $ 1.35 | $ | 1.43 |
| **9. FINAL DISPOSAL - Disposal Fees shall be passed through to the City without markup.** | | | | | |
| a | Load and Transport processed vegetative debris from DMS to final disposal. (0 to 15 miles) | CUBIC YARD | $3.38 | $ | 3.58 |
| b | Load and Transport processed vegetative debris from DMS to final disposal. (>15 to 30 miles) | CUBIC YARD | $3.88 | $ | 4.11 |
| c | Load and Transport processed vegetative debris from DMS to final disposal. (>30 to 60 miles) | CUBIC YARD | $4.58 | $ | 4.85 |
| d | Load and Transport processed vegetative debris from DMS to final disposal. (>60 miles) | CUBIC YARD | $5.28 | $ | 5.59 |
| e | Load and Transport compacted C & D and Mixed Materials from DMS to final disposal. (0 to 15 miles) | CUBIC YARD | $4.48 | $ | 4.74 |
| f | Load and Transport compacted C & D and Mixed Materials from DMS to final disposal. (>15 to 30 miles) | CUBIC YARD | $4.68 | $ | 4.96 |
| g | Load and Transport compacted C & D and Mixed Materials from DMS to final disposal. (>30 to 60 miles) | CUBIC YARD | $5.48 | $ | 5.80 |
| h | Load and Transport compacted C & D and Mixed Materials from DMS to final disposal. (>60 miles) | CUBIC YARD | $5.98 | $ | 6.33 |
| i | | | | | |
| **10. OTHER DEBRIS SERVICES** | | | | | |
| a | Cleaning and clearing of storm drain lines. Drain line diameter 0 to 15 inches. | PER LINEAR FOOT | $14.50 | $ | 15.36 |
| b | Cleaning and clearing of storm drain lines. Drain line diameter >15 to 36 inches. | PER LINEAR FOOT | $16.50 | $ | 17.47 |
| c | Cleaning and clearing of storm drain lines. Drain line diameter >36 inches. | PER LINEAR FOOT | $19.50 | $ | 20.65 |
| d | Debris to be place at the ROW for collection as storm debris. | CUBIC YARD | $17.50 | $ | 18.53 |
| e | Cleaning and clearing of catch basins and inlets. 4' x 4' | EACH | $200.00 | $ | 211.80 |
| f | Cleaning and clearing of catch basins and inlets. 8' x 8' | EACH | $400.00 | $ | 423.60 |
| g | Cleaning and clearing of catch basins and inlets. 10' X 10' | EACH | $600.00 | $ | 635.40 |
| h | Cleaning and clearing of catch basins and inlets. 20' x 20' | EACH | $850.00 | $ | 900.15 |
| Each year on the anniversary date of the contract's execution, the price schedule shall adjust to reflect an increase or decrease based on the Consumer Price Index. | | | | $ | - |

| Month | 2022 | 2023 | 2024 |
|---|---|---|---|
| | 1-month | 1-month | 1-month |
| January | | 0.8 | 0.6 |
| February | | 0.6 | 0.9 |
| March | | 0.4 | 0.4 |
| April | | 0.7 | |
| May | | 0.2 | |
| June | | 0.3 | |
| July | | 0.2 | |
| August | | 0.6 | |
| September | 0.2 | 0.2 | |
| October | 0.4 | -0.1 | |
| November | 0.1 | -0.2 | |
| December | -0.3 | -0.1 | |

# Agreement for Contract Extension
# THUNDERBOLT, GEORGIA (TOWN OF)

**Contract Title: RFP ANNUAL DISASTER DEBRIS REMOVAL, REDUCTION AND DISPOSAL SERVICES**

**Contract Term:** September 14, 2022 through July 13, 2024

**Extension Number:** 1

**Renewal Period:** July 14, 2024 through July 13, 2025

**Contractor:** Ceres Environmental Services Inc
6371 Business Boulevard, Suite 100
Sarasota FL 34240

**Description of Renewal Notice:**

In accordance with the original contract, **ANNUAL DISASTER DEBRIS REMOVAL, REDUCTION AND DISPOSAL SERVICES** all specifications, terms and conditions are to remain the same excluding that Section 5 Services Contract, Price Adjustment Allowance. Ceres Environmental Services, Inc. is exercising our request for Price Adjustment to include an annual price adjustment tied to CPI. Pursuant to this renewal agreement, the contract is hereby being renewed through to July 13, 2025.

Accepted by the following authorized representatives on behalf of Thunderbolt, Georgia (Town of) and the Contractor, Ceres Environmental Services Inc.

Accepted by the following authorized representatives on behalf of Thunderbolt, Georgia (Town of) and the Contractor, Ceres Environmental Services Inc.

**CERES ENVIRONMENTAL SERVICES INC.**

Sign: _____
Tia Laurie, Corporate Secretary

Date: _____

**THUNDERBOLT, GEORGIA (TOWN OF)**

Sign:_____
Authorized Representative

_____
Printed Name:

_____
Title:

Date: _____

# Agreement for Contract Extension
# THUNDERBOLT, GEORGIA (TOWN OF)

**Contract Title: RFP ANNUAL DISASTER DEBRIS REMOVAL, REDUCTION AND DISPOSAL SERVICES**

**Contract Term:** September 14, 2022 through July 13, 2024

**Extension Number:** 1 and 2

**Renewal Period:** July 14, 2024 through July 13, 2026

**Contractor:** Ceres Environmental Services Inc
6371 Business Boulevard, Suite 100
Sarasota FL 34240

**Description of Renewal Notice:**

In accordance with the original contract, **ANNUAL DISASTER DEBRIS REMOVAL, REDUCTION AND DISPOSAL SERVICES** all specifications, terms and conditions are to remain the same excluding that Section 5 Services Contract, Price Adjustment Allowance. Ceres Environmental Services, Inc. is exercising our request for Price Adjustment to include an annual price adjustment tied to CPI. Pursuant to this renewal agreement, the contract is hereby being renewed through to July 13, 2026.

Accepted by the following authorized representatives on behalf of Thunderbolt, Georgia (Town of) and the Contractor, Ceres Environmental Services Inc.

Accepted by the following authorized representatives on behalf of Thunderbolt, Georgia (Town of) and the Contractor, Ceres Environmental Services Inc.

**CERES ENVIRONMENTAL SERVICES INC.**

Sign: _____
Tia Laurie, Corporate Secretary

Date: _____

**THUNDERBOLT, GEORGIA (TOWN OF)**

Sign:_____
Authorized Representative

_____
Printed Name:

_____
Title:

Date: _____

Department Report Placeholder

Department Report Placeholder

Town Administrator Report Forthcoming

**ORDINANCE 2024-_____**

**AN ORDINANCE TO REZONE CERTAIN PROPERTY OF 0.264 ACRES (30292 02013, 30292 02011) LOCATED AT WHATLEY AVE & FISH BAIT TRAIL WITHIN THE TOWN OF THUNDERBOLT, GEORGIA FROM INSTITUTIONAL PROFESSIONAL [I-P] TO ONE FAMILY RESIDENTIAL [R-1]; To Repeal All Other Ordinances in Conflict Herewith; And**

WHEREAS, the duly elected governing authority for· the Town of Thunderbolt, Georgia, is the Mayor and Council thereof; and

WHEREAS, the property located at the southern boundary of the Town of Thunderbolt adjoining nearby streets of Whatley Avenue and Fish Bait Trail is currently zoned Institutional Professional [I-P]; and

WHEREAS, the owner of the property has requested to change the zoning of the property to Two Family Residential [R-2]; and

WHEREAS, the Thunderbolt Comprehensive Plan encourages efficient land use when supporting vacant undeveloped areas and designates the Town's collective growth and development decisions with housing options that promote an adequate range of housing in the community that meets the needs of different sized families with very different income levels; and

WHEREAS, Residential Use is not identified as desirable in the existing zoning district or outlined to be permittable in the Institutional Professional [I-P] zoning district according to the Town's Zoning Ordinance; and

WHEREAS, the Thunderbolt Planning and Zoning Commission considered the request on July 17, 2024, voting 7-0, unanimously, to recommend that Town Council deny the applicant's zoning request to Two Family Residential [R-2]; and

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WHEREAS, the Thunderbolt Town Council has considered the recommendation of the Planning and Zoning Commission from July 17, 2024, and

WHEREAS, the proposed land use is compatible with the historical land use in the nearby area, however Town Council is cognizant of maintaining a housing density consistent with Thunderbolt's small town character according to the Comprehensive Plan; and

WHEREAS, Town Council now wishes to amend the zoning map to change the zoning of the property parcel lots from Institutional Professional [I-P] to One Family Residential [R-1].

NOW, THEREFORE, it is hereby ordained by the governing authority of the Town of Thunderbolt in open meeting as follows:

To adopt an ordinance amending the zoning map for 0.264 acres (30292 02013, 30292 02011) at the corner of Whatley Ave and Fish Bait Trail from Intuitional Professional [I-P] to One Family Residential R-1 [R-1].

This Ordinance shall become effective on _____ day of _____,2024.

ADOPTED THIS _____ DAY OF _____ 2024

_____

MAYOR

_____

TOWN CLERK

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